

		ground that it is barred by the statute of limitations set forth in Code of Civil Procedure section 337(a). In her Reply, Petitioners cite to <i>Cal-Vada Aircraft, Inc. v. Superior Court</i> (1986) 179 Cal.App.3d 435, 448 ("<i>Cal-Vada</i>") for the proposition that "[o]n summary judgment limited to conforming the instrument to the Stipulation, the court may grant summary adjudication striking provisions not contained in the Stipulation without reaching a disputed accrual date." (ROA 189, Reply, 4:11-14.) <i>Cal-Vada</i> makes no such holding; such case does not address any issues regarding conforming an instrument to a stipulation, striking provisions of a stipulation, or an accrual date. Nonetheless, Code of Civil Procedure section 337(a) applies to a cause of action for breach of a written agreement and, thus, appears to be inapplicable to the request to modify the Trust. Petitioners' reliance on <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 792, and <i>Ames v. Paley</i> (2001) 89 Cal.App.4th 668, 670, is also misplaced. Such cases dealt with whether a court's judgment properly conformed to the parties' settlement agreement. The issue before this court is whether certain provisions of a trust should be deleted because they were not specifically included in the settlement agreement which required the creation of the trust. The court cannot resolve such issue by simply determining whether the created trust "conforms" to the settlement agreement when the settlement agreement includes only a few mandatory terms for the trust. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atl. Richfield Co.</i>, (2001) 25 Cal.4th 826, 850.) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (<i>Id.</i>) A prima facie showing is one that is sufficient to support the position of the party in question. (<i>Id.</i> at p. 857.) Petitioners have not met his burden. Counsel for Petitioners is ordered to give notice of ruling.
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